



File No.: EXP202303969

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 23, 2023, a complaint was filed with entry registration number REGAGE23e00011404587 before the Spanish Agency for Data Protection against NATURGY IBERIA, S.A. with NIF A08431090 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint for receiving commercial electronic and telephone communications after their request for deletion was attended to.

Along with the notification, the following is provided:

- Copy of the response received to their deletion request.
- Screenshots showing the receipt of calls on the days 20/01/23, 09/02/23, and 14/02/23.
- Certificate of registration in the Robinson list.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 28, 2023, as recorded in the acknowledgment of receipt in the file.

On March 28, 2023, this Agency received a response indicating that:

"The phones ***PHONE.1 and ***PHONE.2, from which calls were made to the Complainant, do not belong to Naturgy nor correspond to those provided by the entities that carry out commercial actions on behalf of Naturgy or its subcontractors. It is highly unlikely that the calls received by the Complainant from these phones were made by Naturgy or by another entity contracted by Naturgy. The call made from the phone number ***PHONE.3 to the Complainant's phone (***PHONE.4) was made by the entity Nauric Energy, S.L., using its own database not provided by Naturgy. The call was made by Nauric in clear violation of its contractual obligations, contravening the instructions and good practices imposed by Naturgy. (...)

It is evident that Nauric's conduct did not obey, directly or indirectly, any instruction or mandate from Naturgy, and would have been carried out in clear contravention of the instructions and good practices that Naturgy requires from its collaborating companies, constituting a serious breach of its contractual obligations, in addition to severely harming Naturgy's interests, as well as its reputation, for which Naturgy would also be a harmed party due to Nauric's conduct..."

THIRD: On May 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

An information request was made on 30/5/2023, and a response was received in this Agency on 14/6/2023 from the complained party providing:

- Document "01. 2022_01_01 Service Contract.pdf". Service contract signed on 1/1/2022 by Naturgy with the entity Nauric Energy, S.L. (hereinafter, Nauric), under which Nauric provides Naturgy with advisory and commercial and technical support services for the acquisition and renewal of customers

(Clause One. – Object), both in person and through telephone sales actions, is the valid document at the time of the call to the complainant on 14/2/2023.

In Clause 7, section 4, the obligations of the collaborator regarding personal data protection are outlined as follows:

- Obligation to call only individuals who have given their consent to be subject to commercial actions.
- Obligation to cross-check databases with the Robinson List.

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Obligation to provide the databases to Naturgy so that it can exclude from them the phone numbers that have exercised their right of opposition before Naturgy and, consequently, the prohibition of contacting them.

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Obligation to record calls in order to evaluate the quality of service and compliance with contractual obligations.

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Obligation to provide evidence of compliance with the obligations.

Additionally, Clause 7, section 5 highlights the prohibition of subcontracting the services without the prior consent of Naturgy and, in the event of obtaining it, the obligation to transfer the same obligations to its subcontractors.

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Document “02. 2022_01_01 Extension Agreement.pdf”. This constitutes the agreement formalized between the Parties to extend the validity of the Service Contract formalized on 1/1/2022, starting from 1/1/2023.

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Document “03.2023_01_01. Treatment Assignment Contract.pdf”. This is the treatment assignment contract signed on 1/1/2023, which includes the elements described in Article 28 of the GDPR and complements the Service Contract.

A request for information is made to the telecommunications operators of the three calling phone numbers to ascertain their ownership, resulting in:

1.

For phone number ***PHONE.1 in the call of 20/1/2023, the owner is the entity ENERGY WINNER, S.L. (hereinafter Energy)

☐

After several requests from the AEPD, Energy finally provides and states that:

☐

1.- Document of customer consent for the call upon completing the form <https://ofertasluzygas.com> where it is stated:

I have read and accept the use and transfer of my data for commercial purposes to third companies in the energy sector

I accept

I authorize to contact me by email, phone, or any means for commercial purposes. I have read and accept the use of my data for the provision of the service by SANRO-ROAL, S.L.

I accept

And the telematic identification data to the cited URL from an IP and a browser identified on the date and time of 3/1/2023 at 13:58:15h

The company SANRO-ROAL, S.L. is identified.

☐

2.- Energy does not have a marketing channel with Naturgy Iberia, SA.

☐

3.- An invoice is attached from the company SANRO-ROAL, S.L. dated 31/1/2023 for the concept of Leads.

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A response is requested for the unanswered items in a new request from the AEPD via electronic means, which expired on 3/10/23, and was resent on 6/10/23 by postal mail and to the provided email address without having received a response as of the date of this report.

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2.

For phone number ***PHONE.3 in the call of 14/2/2023, the owner is the entity GRUPO IAEZ S.L. (hereinafter laez)

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After several requests from the AEPD, laez finally provides and states that:

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1.- Document of customer consent for the call upon completing the form <https://ofertasluzygas.com> which matches the one provided by Energy.

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2.- laez does not have a marketing channel with Naturgy Iberia, SA.

☐

3.- An invoice from Energy with the company SANRO-ROAL, S.L. dated 31/1/2023 for the concept of Leads is attached. The invoice with laez is requested without having received a response as of the date of the report.

☐

A response is requested for the unanswered items in a new request from the AEPD via electronic means, which expired on 3/10/23, and was resent on 6/10/23 by postal mail and to the provided email address without having received a response as of the date of this report.

3.

For phone number ***PHONE.2 in the call of 9/2/2023, the owner is the entity MS Conexiones 2023 S.L. (hereinafter MS Conexiones)

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After several requests from the AEPD, MS Conexiones finally provides and states that:

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1.- Document of customer consent for the call upon completing the form <https://ofertasluzygas.com> where it is stated: (same document as provided by Energy and laez)

I have read and accept the use and transfer of my data for commercial purposes to third companies in the energy sector

I accept

I authorize to contact me by email, phone, or any means for commercial purposes. I have read and accept the use of my data for the provision of the service by SANRO-ROAL, S.L.

I accept

And the telematic identification data to the cited URL from an IP and a browser identified on the date and time of 3/1/2023 at 13:58:15h

The company SANRO-ROAL, S.L. is identified.

Through a diligence, it has been verified that on 22/9/2023 this domain is free.

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2.- A wrong phone number was marked by mistake.

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3.- There is no printed copy of the data of the called owner, as it was a wrong phone number.

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4.- An invoice with the company SANRO-ROAL, S.L. dated 31/1/2023 for the concept of Leads is attached.

(Clarification from the inspector: A lead refers to those users who have left us their contact details. These users fill out one of our landing pages to obtain content, and in turn, their personal data.)

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become part of our database and turn into a lead for our company. In summary, lead generation is the foundation of online marketing strategies.)

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5.- Attached is the collaboration contract with LOGICLOREN dated 1/4/2023, which develops the activity with its own organizational criteria and provides professional Teleoperator services.

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6.- There was no intention of commercial sale with this client because they are included in the ROBINSON LIST.

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7.- The client never sent an email to oppose the receipt of commercial communications.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final Provision Sixth, Section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the investigations carried out by this Agency, it has been determined that the calls were not made by NATURGY.

The call made from the number ***PHONE.1 belongs to the entity ENERGY WINNER, S.L., which provides a consent document from the complainant for filling out a form on the website <https://ofertasluzygas.com>.

The call made from the number ***PHONE.3 belongs to the entity GRUPO IAEZ S.L., which provides a consent document from the complainant.

The call made from the number ***PHONE.2 belongs to the entity MS Conexiones 2023 S.L., which

provides information identical to that of Energy and a collaboration contract with the entity.

Therefore, based on the information indicated in the previous paragraphs, it has been confirmed that there was prior consent from the complainant, and thus there is no evidence to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, and in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to NATURGY IBERIA, S.A. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

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